



CHAPTER 28.

An Act to amend the War Damage Act, 1941, and Part II and section sixteen of the War Risks Insurance Act, 1939.
[6th August 1942.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The risk period referred to in the War Damage Act, 1941 (in this Act referred to as "the principal Act") is hereby extended, for all the purposes of that Act, so as to continue until the thirty-first day of August, nineteen hundred and forty-two, and thereafter until it is terminated by an order made by the Treasury and approved by a resolution of the Commons House of Parliament, and the War Damage (Extension of Risk Period) Act, 1941, is hereby repealed.

Extension of
risk period.
4 & 5 Geo. 6.
c. 12.

4 & 5 Geo. 6.
c. 37.

(2) References to the risk period in regulations made by the Treasury under the principal Act shall, unless the contrary intention appears, be construed as references to that period as extended by the preceding subsection, as well in the case of regulations made before the passing of this Act as in the case of regulations made thereafter.

(3) Section thirty-one of the principal Act (which provides, in relation to instalments of contribution falling due in the year nineteen hundred and forty-one, for determining questions as to contributions depending on the circumstances obtaining during the risk period as if the risk period had ended with the first day of January, nineteen hundred and forty-one) shall apply in relation to the instalments of contribution falling due, whether before or after the passing of this Act, in any year in which the relevant date falls within the risk period, as if for the words "in the year nineteen hundred and forty-one" there were substituted

the words "in any year" and for the words "the first day of January, nineteen hundred and forty-one" there were substituted the words "the relevant date in that year."

Amendment of
the principal
Act.

2.—(1) The principal Act shall be amended by the modifications and additions specified in—

- (a) the First Schedule to this Act, relating to the provisions of the principal Act generally ;
- (b) the Second Schedule thereto, relating to the provisions of the principal Act as to the ultimate incidence of contributions under Part I as between mortgagors and mortgagees and as between landlords and tenants ; and
- (c) the Third Schedule thereto, relating to the provisions of Part II of the principal Act ;

and there shall be made therein the consequential amendments specified in the Fourth Schedule to this Act.

(2) The principal Act shall have effect as if it had been originally enacted with the amendments aforesaid (except as expressly provided in sub-paragraph (3) of paragraph 7, and sub-paragraph (2) of paragraph 27, of the said First Schedule), and regulations of the Treasury under section sixty-eight of the principal Act regulating payments under that section the making of which is authorised in the said Third Schedule may be made so as to have effect as from such date (whether before or after the passing of this Act) as may be specified in the regulations.

Punishment
for giving false
information.

3.—(1) If any person, for the purpose of obtaining for himself or any other person any payment in respect of war damage under the principal Act, or under a policy issued under either of the schemes operated under Part II thereof, or in respect of damage arising from King's enemy risks under Part II of the War Risks Insurance Act, 1939, or under a policy issued in pursuance of the commodity insurance scheme,—

- (a) furnishes any information which he knows to be false in a material particular, or recklessly furnishes any information which is false in a material particular ; or
- (b) with intent to deceive produces, furnishes, sends or otherwise makes use of any book, account or other document, which is false in a material particular ; or
- (c) with intent to deceive withholds any material information,

he shall be guilty of an offence and, unless indicted therefor, liable on summary conviction to a fine not exceeding one hundred pounds, or to imprisonment for a term not exceeding three months, or to both such fine and such imprisonment.

(2) Any proceedings under the Summary Jurisdiction Acts in respect of an offence against this section, or against subsection (6) of section thirty-six, subsection (3) of section fifty-seven, or subsection (4) of section sixty-three, of the principal Act, or against subsection (3) of section eleven A of the War Risks Insurance Act, 1939, may be commenced at any time before the expiration of six months after the first discovery of the offence by the authority concerned.

In the application of this subsection to Northern Ireland, for any reference to the Summary Jurisdiction Acts there shall be substituted a reference to the Petty Sessions (Ireland) Act, 1851, and any Act amending that Act.

14 & 15 Vict.
c. 93

4.—(1) If the Treasury certify that in the interests of the defence of the realm or the efficient prosecution of any war in which His Majesty may be engaged it is inexpedient that copies of the statements for any year prepared under section seventy of the principal Act (which provides for the preparation of annual statements of payments and receipts under Part II of the principal Act and for the laying of copies thereof before Parliament) should be laid before Parliament, those copies shall not, so long as the certificate remains in force, be so laid.

Postponement
of laying
before Parlia-
ment of state-
ments of
payments and
receipts, &c.

(2) At the end of subsection (4) of section sixteen of the War Risks Insurance Act, 1939 (which subsection provides for the preparation by the Board of Trade of accounts of sums received into and paid out of the war risks (marine) insurance fund and the war risks (commodities) insurance fund, for the examination and certification of the accounts by the Comptroller and Auditor General and for the laying of copies of the accounts together with copies of his reports thereon before Parliament) there shall be added the following proviso :—

“ Provided that if the Treasury certify that in the interests of the defence of the realm or the efficient prosecution of any war in which His Majesty may be engaged it is inexpedient that copies of either of the accounts for any year and of the report thereon should be laid before Parliament, those copies shall not, so long as the certificate remains in force, be so laid ” ;

and the Defence (War Risks Insurance) Regulations, 1942, shall cease to have effect, but without prejudice to any certificate issued by the Treasury under those Regulations in force immediately before the passing of this Act, which shall continue in force as if issued under the said proviso.

Payments
otherwise than
under policies
in respect of
goods insur-
able under
commodity
insurance
scheme.

5.—(1) The War Risks Insurance Act, 1939, shall have effect, and be deemed always to have had effect, as if after section nine thereof there were inserted the following section :—

“ 9A.—(1) The Board of Trade, acting in accordance with regulations made by the Treasury, may, where it appears expedient to the Board so to do to avoid undue hardship, make out of the war risks (commodities) insurance fund, otherwise than under a policy issued in pursuance of the commodity insurance scheme, payments to a person in respect of loss or damage occurring by King's enemy risks to goods owned by him—

(a) which were, at the time when the loss or damage occurred, insurable under the commodity insurance scheme ; and

(b) as respects which he was at that time exempted, by virtue of the proviso to subsection (1) or to subsection (1A), or by virtue of subsection (1C), of section nine of this Act, from the obligation to be insured in respect of the goods under that scheme.

(2) The provisions of subsection (3) of section fourteen of this Act relating to the laying before Parliament of certain orders of the Board of Trade shall apply to any regulations made by the Treasury under this section ; but notwithstanding anything in subsection (4) of section one of the Rules Publication Act, 1893, such regulations shall be deemed not to be, or to contain, statutory rules to which that section applies.”

56 & 57 Vict.
c. 66.

(2) Regulations of the Treasury made by virtue of this section may be made so as to have effect as from such date, whether before or after the passing of this Act, as may be specified in the regulations.

Authorisation
of increase in
payments out
of moneys
provided by
Parliament,
and in sums to
be paid into
the Exchequer.

6. Any increase attributable to the extension by this Act of the risk period, or to any amendment by this Act of the principal Act, in the sums payable out of moneys provided by Parliament under section fifty-four, fifty-five or ninety-one of the principal Act shall be defrayed out of moneys so provided, and any additional sums received by the Commissioners of Inland Revenue or the Board of Trade by reason of such extension or of any such amendment shall be paid into the Exchequer.

Short title,
construction,
citation
and extent.

7.—(1) This Act may be cited as the War Damage (Amendment) Act, 1942.

(2) This Act shall be construed as one with the principal Act, and references in this Act and in that Act to Part I of that Act shall include references to provisions of this Act which relate to payments in respect of war damage to land or to

the recovery or the ultimate incidence of instalments of contributions; and this Act may be cited together with that Act as the War Damage Acts, 1941 and 1942.

(3) Any reference in this Act to any other enactment (including the principal Act) shall, except in so far as the context otherwise requires, be construed as a reference to that enactment as amended by or under any other enactment (including this Act).

(4) References in the Schedules to this Act to a section or Schedule by number without more shall be construed as references to that section of or Schedule to the principal Act.

(5) So much of this Act as relates to the War Risks Insurance Act, 1939, shall extend to the Isle of Man, but with the substitution for the reference in subsection (2) of section three to the Summary Jurisdiction Acts of a reference to the Petty Sessions and Summary Jurisdiction Acts.

Section 2.

SCHEDULES.

FIRST SCHEDULE.

AMENDMENTS RELATING TO THE PRINCIPAL ACT GENERALLY.

1. *Bringing into account of scrap value of articles provided for temporary works.*

The amount of a payment of cost of works or value payment shall be reduced by an amount equal to any value as materials of articles provided for the purpose of works the proper cost of which has been or is to be included in a temporary works payment, and which, in the case of a payment of cost of works, become available as materials on the execution of subsequent works, such value being ascertained in accordance with regulations made by the Treasury.

2. *Valuation of licensed premises.*

10 Edw. 7 &
1 Geo. 5. c. 24.

(1) Where war damage is sustained by premises in respect of which a justices' licence within the meaning of the Licensing (Consolidation) Act, 1910, was in force before the occurrence of the damage, any determination required for the purposes of the principal Act relating to the value of the premises or of any interest therein shall be made on the assumption that the validity of the licence, and the prospect of renewal thereof, were, and would remain, unaffected by the damage or by any circumstances connected therewith or any consequence thereof.

3 Edw. 7. c. 25.

(2) In the application of this paragraph to Scotland, for any reference to a justices' licence within the meaning of the Licensing (Consolidation) Act, 1910, there shall be substituted a reference to a certificate as defined in Part VII of the Licensing (Scotland) Act, 1903.

(3) In the application of this paragraph to Northern Ireland, for any reference to a justices' licence within the meaning of the Licensing (Consolidation) Act, 1910, there shall be substituted a reference to the certificate required to enable a person to obtain the grant transfer or renewal of, and to hold, any excise licence for the sale of any intoxicating liquor.

3. *Amendments as to valuation of a hereditament for calculating amount of value payment.*

(1) In subsection (5) of section three (which specifies, amongst other things, the matters subject to which a sale of a hereditament in the open market is to be assumed, for the purposes of the valuation of the hereditament, to be made), for the words from "any restriction or liability imposed by or under an enactment" to "other incumbrance" there shall be substituted the words "any restriction imposed by or under an enactment passed before the passing of this Act, to which the hereditament was subject at that time, but free from any other incumbrance and without regard to any liability of the hereditament to become subject after that time to any restriction by virtue of any enactment".

(2) In the proviso to subsection (5) of section three (which empowers the Treasury to make regulations as to the valuation of certain hereditaments otherwise than by reference to value on a sale in the open market) the words "or having a value which could not be fully realised on such a sale" shall be omitted.

4. *Amendments as to determination between cost of works or value payment for damage to developed hereditament.*

(1) In paragraph (a) of subsection (1) of section four (which defines damage involving total loss as meaning damage "such that the making good thereof would be likely to require works costing more than" the difference between the value which the hereditament would have after the execution of the works and the value which the hereditament would have as a site) for the words "such that the making good thereof would be likely to require works costing more than" there shall be substituted the words "such that the proper cost of the works required for reinstating the hereditament in the form in which it existed immediately before the occurrence of the damage would be likely to be more than".

(2) For the purposes of the said paragraph (a), the value which a hereditament would be likely to have shall be taken to be the amount which the fee simple therein might be expected to realise on a sale thereof made in the open market, with vacant possession, subject to any right or restriction such as is mentioned in subsection (5) of section three to which the hereditament was subject immediately after the occurrence of the damage, but free from any other incumbrance and without regard to any liability of the hereditament to become subject after that time to any restriction by virtue of any enactment:

Provided that, in the case of hereditaments of a kind for the valuation of which provision is made by regulations made under the proviso to the said subsection (5), such value shall be ascertained by reference to such matters as may be specified in regulations made as therein mentioned.

5. *Payments to owners of rentcharges.*

(1) Where a value payment is to be made in respect of war damage to a hereditament and at the date by reference to which the disposal of the payment is to be regulated (in this paragraph referred to as "the material date") there was subsisting a rentcharge created out of a proprietary interest (being either the fee simple or a tenancy granted for a term of a hundred years or more) in any land in the hereditament, or in any such land together with other land, a right to receive a share of the value payment shall vest in the person who was the owner of the rentcharge at that date, if he shows that the following conditions are satisfied, namely—

- (a) that the amount of the rentcharge so far as attributable to land in the hereditament then subject thereto (in this paragraph referred to as "the charged land in the hereditament") exceeded the available annual value of that land as depreciated by the war damage; and
- (b) that at the time when the question whether this condition is satisfied falls to be determined no building sufficient to make

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good the excess has been carried out, or, having regard to all the circumstances (including any undertaking required under paragraph (a) of subsection (3) of section seven), is likely to be carried out within a reasonable period after the time when the discharge of the value payment becomes permissible.

(2) If the said right is exercised—

(a) the amount of the share of the owner of the rentcharge shall be an amount equal to the capital equivalent of the excess mentioned in the preceding sub-paragraph, so however that if the amount of the rentcharge so far as attributable to the charged land in the hereditament was greater by any sum than the available annual value of that land apart from any war damage the amount of the share shall be computed as if the said excess had been reduced by that sum ; and

(b) so much of the rentcharge as is equal to the said excess shall be extinguished on the date on which the share is paid, and, as between the persons interested in the charged land in the hereditament on the one hand and in any other land subject to the rentcharge on the other hand, the proper share of the persons interested in the charged land in the hereditament of the liability for the residue of the rentcharge in respect of any period after the extinguishment shall be treated as being an amount per annum equal to the available annual value of the charged land in the hereditament as depreciated by the war damage.

(3) Any question as to whether the conditions mentioned in sub-paragraph (1) of this paragraph are satisfied, or as to the amount of the said excess or of the share of the owner of a rentcharge, shall be determined by agreement between the owner thereof and of the proprietary interest out of which the rentcharge was created in the charged land in the hereditament, together with any mortgagee of either of those interests, or, in default of agreement, by reference to a referee as provided by subsection (5) of section nine.

(4) Where the said right is exercised, effect shall be given thereto out of so much of the value payment as is payable in respect of the proprietary interest out of which the rentcharge was created in the charged land in the hereditament, and—

(a) if apart from this provision any of the value payment would be payable under subsection (4) of section nine to a mortgagee of that proprietary interest, then, if the mortgage had priority to the rentcharge, it shall be payable to him and effect shall be given to the said right out of any sums to which the owner of that proprietary interest would otherwise have been entitled under the provisions of that subsection as to mortgagees accounting, or, if the rentcharge had priority to the mortgage, the sum payable to the mortgagee shall be reduced by the amount required for giving effect to the said right ;

(b) if the rentcharge was itself subject to a mortgage at the material date, subsection (4) of section nine shall have effect in relation to the disposal of the share to be paid in respect

of the rentcharge as it has effect in relation to so much of a value payment as is payable in respect of a mortgaged proprietary interest, with the substitution for references therein to such an interest of references to the rentcharge ;

- (c) subsections (2) and (4) of section nine, and sub-paragraph (2) of paragraph 8 of this Schedule, shall have effect subject to the provisions of this paragraph.

(5) Regulations may be made under section ten (which confers power to make regulations as to claims for payments) as to the exercise of the said right and the manner in which effect is to be given to the said right where exercised, and in particular, but without prejudice to the generality of the power conferred by this sub-paragraph, regulations so made may make provision as to the matters aforesaid in cases in which the charged land in a hereditament is a part only thereof, or was in divided ownership at the material date, or in which a proprietary interest or rentcharge was subject to a mortgage at that date.

(6) As regards cases in which the title to a rentcharge, or to land subject thereto, is registered under the Land Registration Act, 1925, such provision may, without prejudice to the generality of section one hundred and forty-four of that Act, be made by rules under that section as may be expedient in consequence of the provisions of this paragraph, and in particular for securing (by the imposition of conditions as to the exercise of the said right or otherwise) that the extinguishment of any of a rentcharge by virtue of this paragraph shall not take effect without notice thereof being entered on the register. 15 & 16 Geo. 5.
c. 21.

(7) In this Act the expression "rentcharge" means a rentcharge (including a fee farm rent) subsisting at law or capable of subsisting at law, and not being an interest or charge arising under a settlement within the meaning of the Settled Land Act, 1925, and means, where an apportionment of a rentcharge binding on the owner thereof has been made, each of the apportioned parts and not the entire rentcharge. 15 & 16 Geo. 5.
c. 18.

(8) For the purposes of this paragraph, the "capital equivalent" of the excess referred to in head (a) of sub-paragraph (1) shall be taken to be that excess multiplied by the number of years purchase which the rentcharge might have been expected to realise on a sale thereof in the open market on the thirty-first day of March, nineteen hundred and thirty-nine, if it had been subsisting on that day with the like incidents in all respects as it had at the material date, and the hereditament had been in the state in which it was immediately before the occurrence of the damage thereto, and the annual value of any land outside the hereditament subject to the rentcharge had been its annual value apart from any war damage.

(9) For the purposes of this paragraph, the "annual value of the charged land in the hereditament as depreciated by the war damage" shall—

- (a) if that land is coterminous with the hereditament, be taken to be five per cent. of the value of the hereditament after the occurrence of the damage as ascertained for the purpose of determining the amount of the value payment ;

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- (b) if that land is a part only of the hereditament, be determined by apportioning an appropriate part of the said percentage of the said value to that land.

(10) For the purposes of this paragraph, the "annual value apart from any war damage" of any land shall, if that land was coterminous with land which constituted a contributory property or two or more contributory properties for the purposes of the instalments of contribution for the year in which the war damage to the hereditament occurred (or, if it occurred before the beginning of the year nineteen hundred and forty-one, for that year), be taken to be the contributory value or the sum of the contributory values of the property or properties for that year, and, if it was not, shall be determined by valuation made by reference—

- (a) primarily to the contributory value for that year of any such contributory property or properties as aforesaid which that land comprised or of which it formed part; and
- (b) subject as aforesaid, to the rent at which that land or any part thereof might have been expected to let from year to year on the thirty-first day of March, nineteen hundred and thirty-nine, if it had been on that day in the state in which it was immediately before the occurrence of the damage to the hereditament, or, in the case of land outside the hereditament which had then also sustained war damage, immediately before the occurrence of that damage, and the tenant undertook to pay the usual tenant's rates and taxes and the landlord undertook to bear the costs of the repairs and insurance and other expenses, if any, necessary to maintain the land in a state to command that rent.

(11) For the purposes of this paragraph, the "available annual value" of the charged land in the hereditament as depreciated by the war damage, or apart from any war damage, shall be taken to be the annual value thereof as so depreciated, or apart from any war damage, as the case may be, less the amount, so far as attributable to any of the charged land in the hereditament, of—

- (a) any rentcharge having priority to the rentcharge in question to which the fee simple in that land was subject at the material date, or, where that rentcharge was created out of a tenancy of that land, to which either the fee simple therein or that tenancy or any superior tenancy thereof was subject at that date; and
- (b) where that rentcharge was created out of a tenancy of that land, the rent reserved by the lease for the year in which that date fell.

(12) For the purposes of this paragraph, the "amount attributable" to any land of a rentcharge, or of rent reserved by a lease, shall, where at the material date that land was the only land subject to the rentcharge, or out of which the rent issued, be taken to be the whole amount of the rentcharge payable, or of the rent reserved, for the year in which that date fell, and, where it was not, shall be determined

by apportioning or allocating to that land so much (if any) of that whole amount as may be appropriate, having regard—

- (a) primarily, to any apportionment or allocation of that rentcharge or rent which may have been made otherwise than so as to be binding on the owner of that rentcharge or on the landlord, as the case may be, before the occurrence of any war damage to any of the land subject to that rentcharge or rent; and
- (b) subject as aforesaid, to the proportion borne by the annual value apart from any war damage of that land to the annual value apart from any war damage of the other land subject to that rentcharge or rent.

(13) In the application of this paragraph to Northern Ireland, there shall be substituted for the reference to the Settled Land Act, 1925, a reference to the Settled Land Acts, 1882 to 1890, and, as regards cases in which land in Northern Ireland is subject to a rentcharge, the Lord Chief Justice of Northern Ireland may by rules make such provision as may be expedient for securing (by the imposition of conditions as to the exercise of the said right or otherwise) that the extinguishment of any of a rentcharge by virtue of this paragraph shall not take effect without notice thereof being registered in the proper office for the registration of deeds or titles, as the case may require.

6. *Payments to superiors and creditors in ground annuals.*

(1) The last preceding paragraph shall extend to Scotland subject to the modifications specified in the following provisions of this paragraph.

(2) For any reference to a rentcharge created out of the fee simple in any land there shall be substituted a reference to a feuduty or ground annual payable by the owner of the fee simple in such land; references to the owner of a rentcharge shall be construed accordingly; and references to a rentcharge created out of a tenancy shall not apply.

(3) The right conferred by sub-paragraph (1) on a superior or the creditor in a ground annual to receive a share of a value payment shall not be exercisable until—

- (a) in the case where the feuduty or ground annual is payable in respect of the charged land in the hereditament and also of other land, the part of such feuduty or ground annual attributable to the charged land in the hereditament has been allocated thereon; and
- (b) the feuduty or ground annual or the part thereof so allocated, as the case may be, in so far as it exceeds the annual value of the charged land in the hereditament as depreciated by the war damage, has been discharged.

(4) Where for the purposes of this paragraph a feuduty or a ground annual is required to be allocated or a feuduty or a ground annual or a part thereof so allocated is required to be discharged, the superior

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or the creditor in the ground annual shall execute and record in the appropriate register of sasines—

- (a) a memorandum specifying the sum to be allocated and describing particularly or by reference the land on which it is to be allocated; or, as the case may be,
- (b) a discharge of the feuduty or ground annual or part specifying the extent to which the same is discharged and describing particularly or by reference the land so disburdened;

and any such allocation or discharge shall be binding on all having interest.

7. Form of payment where making good is wholly or partly abandoned or hereditament is compulsorily acquired.

(1) Where the appropriate payment for war damage to a hereditament would apart from this provision be a payment of cost of works, if the Commission are satisfied that it is the wish of all the owners of proprietary interests for the time being subsisting in the hereditament and of rentcharges (if any) to which it is subject and of any mortgagee of any such interest, or of any of the persons aforesaid whose wish ought in the opinion of the Commission to prevail, that the damage or any part of it should not be made good, or if they are satisfied that the circumstances are such that the damage or any part of it will not in fact be made good, they may, notwithstanding any previous determination of the kind of payment to be made in respect of the damage to the hereditament, make a payment or payments in respect thereof as follows and of such amounts respectively, not exceeding the following, as they may think fit, that is to say—

- (a) in respect of the damage so far as made good, a payment of cost of works of an amount equal to so much of the proper cost of the works executed for the making good thereof as falls within the permissible amount mentioned in paragraph (a) of subsection (2) of section three;
- (b) in respect of the damage so far as not made good, a value payment of an amount computed in other respects as provided by section three but, in a case in which any works the subject of a payment under this paragraph have been executed, as if all those works could have been and had been executed immediately after the occurrence of the damage and the depreciation in the value of the hereditament had fallen to be ascertained by reference, as regards the state of the hereditament after the damage, to its state immediately after the execution thereof.

(2) Where the appropriate payment for war damage to a hereditament would apart from this provision be a payment of cost of works, if land constituting or forming part of the hereditament, or an interest in such land, is acquired compulsorily by virtue of any enactment, whether passed before or after the passing of the principal Act or of this Act, or is acquired by agreement by a person authorised by virtue of any such enactment to acquire it compulsorily, then, notwithstanding any previous determination of the kind of payment to be made in respect of the damage to the hereditament,—

- (a) the Commission shall make a payment or payments in respect thereof as follows, that is to say, in respect of the damage

so far as made good before the date of the acquisition, a payment of cost of works, and, in respect of the damage so far as not made good before that date, a value payment, of the amounts respectively mentioned in heads (a) and (b) of the preceding sub-paragraph; but

- (b) no payment of costs of works shall be made by reference to the cost of any works executed on or after the date of the acquisition, and compensation for the acquisition shall be determined accordingly.

In relation to any such acquisition as aforesaid references to the date of the acquisition shall be construed as references to the earliest date after the occurrence of the damage on which any such action as the following is taken, namely, the service of a notice to treat for the acquisition of or of an interest in land constituting or forming part of the hereditament, the taking of any other action by virtue of which the acquisition of or of an interest in such land becomes obligatory, or the making of an agreement for the acquisition of or of an interest in such land without any such notice having been served or any other such action having been taken.

(3) The principal Act shall have effect as if the preceding provisions of this paragraph had been inserted in subsection (2) of section four in substitution for paragraph (a) of that subsection, and section sixteen shall be omitted:

Provided that section sixteen shall have effect, to the exclusion of sub-paragraph (2) of this paragraph, in a case in which a notice to treat for such a compulsory acquisition as is mentioned in section sixteen has been served, or such an acquisition has otherwise become obligatory, before the passing of this Act.

(4) The power to make a payment of cost of works in respect of war damage to a hereditament in respect of which a value payment would otherwise be appropriate conferred on the Commission by paragraph (b) of subsection (2) of section four (which relates to works appearing to them to be expedient having regard to their effect on the value of another hereditament), and by paragraph (b) of subsection (3) of section seven (which relates to works executed in the public interest), shall extend to the making in respect of the damage of payments as specified in sub-paragraph (1) of this paragraph, limited as respects head (a) thereof to such works as aforesaid.

(5) Where a value payment is made under this paragraph, subsection (3) of section nine shall have effect in relation thereto as if the depreciation in the value of each interest in the hereditament had fallen to be ascertained, as regards the state of the hereditament after the damage, as provided by head (b) of sub-paragraph (1) of this paragraph in relation to the ascertainment of the depreciation in the value of the hereditament.

(6) Where both a payment of cost of works and a value payment are made under this paragraph, subsection (6) of section three and paragraph 1 of this Schedule (which relate to the reduction of payments by reference to the value of articles becoming available as materials) shall not have effect in relation to both payments to the full extent, but the appropriate reduction in respect of the value of any articles

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shall be made in one or other of the payments or partly in one and partly in the other as the Commission may determine.

(7) Section thirty-three (which relates to the deduction of contribution from a value payment) shall not have effect in relation to a value payment to be made under this paragraph.

8. *Disposal of value payment substituted for payment of cost of works in favour of persons who would have benefited from payment of cost of works.*

(1) Where a value payment is made by the Commission in exercise of the power conferred on them by sub-paragraph (1) of the last preceding paragraph, or by virtue of sub-paragraph (2) thereof, or in exercise of the power conferred on them by subsection (2) of section seven, in respect of war damage in respect of which a payment of cost of works would have been payable if the nature of the payment had fallen to be determined under subsection (1) of section four apart from any other provision, the following provisions of this paragraph shall have effect.

(2) The disposal of the payment shall be regulated by reference to the title to the hereditament at the date of the determination of the Commission to exercise that power, or at the date of the acquisition, as the case may be (in this paragraph referred to as "the material date"), and accordingly the payment and the interest thereon shall be paid—

- (a) if no proprietary interest other than the fee simple was subsisting in the hereditament or in any part thereof on the material date, to the person who was then the owner of the fee simple therein ; or
 - (b) in any other case, to the persons who were on the material date the owners of the several proprietary interests then subsisting in the hereditament, or in any part thereof, which were depreciated in value by reason of the war damage, in shares proportionate to the amount of the depreciation in value to which they were respectively subject by reason thereof.
- (3) For the purposes of the last preceding sub-paragraph, the depreciation in value to which an interest was subject by reason of war damage shall be taken to be the difference between—
- (a) the amount that an interest similar to that interest, subsisting in the hereditament on the thirty-first day of March, nineteen hundred and thirty-nine, with the like incidents (subject, so far as relevant, to the specified exceptions) as that interest had immediately before the material date, might have been expected to realise on a sale thereof in the open market on the said thirty-first day of March if the hereditament had been on that day in the state in which it was immediately before the occurrence of the damage ; and
 - (b) the amount that an interest so subsisting might have been expected to realise on such a sale if the hereditament had been on that day in the state by reference to which, as regards its state after damage, the depreciation in the value of the hereditament is ascertained for the purpose of computing the amount of the value payment in question ;

and those amounts respectively shall be determined as provided by subsection (5) of section nine in relation to the determination of the value of a proprietary interest in a hereditament.

The specified exceptions referred to in this sub-paragraph are the following, that is to say,—

- (i) each of the said amounts shall be determined without regard to the fact of the interest's being subject to any mortgage or floating charge or to any rentcharge ;
- (ii) each of the said amounts shall be determined without regard to the fact of the interest's being affected by any restriction imposed on the hereditament by or under an enactment passed after the passing of the principal Act or by any liability of the hereditament to become subject to any restriction by virtue of any enactment ;
- (iii) the said amount referred to in head (a) shall be determined without regard to incidents arising under the provisions of the Landlord and Tenant (War Damage) Acts, 1939 and 1941 ;
- (iv) the said amount referred to in head (b) shall be determined, as respects incidents so arising, by reference to the incidents so arising which in fact attach to the interest whether before or after the material date, except that, where a conditional notice of retention has been served and the interests both of the landlord and of the tenant are acquired as mentioned in sub-paragraph (2) of the last preceding paragraph, that amount shall be determined as if the notice had not been conditional.

(4) The principal Act shall have effect as if the provisions of the two last preceding sub-paragraphs had been inserted in section nine after subsection (3) thereof, and those provisions shall accordingly have effect subject to the provisions of subsection (4) thereof.

(5) If any person makes application to the Commission in that behalf and shows that, having regard to any agreement made during the period between the occurrence of the damage and the passing of this Act as to the disposal of any payment which might be made in respect of the damage, or to any transaction or disposition entered into or made, or contained in a will or codicil executed, during that period on the assumption that a particular kind of payment would be made in respect of the damage or that any payment to be made in respect thereof would be disposed of in a particular way, or to any other circumstances occurring during that period, the disposal of the payment in accordance with the preceding provisions of this paragraph would involve serious injustice to him, the Commission may dispose of the whole or any part of the payment or of any share thereof as if subsection (2) of section nine had had effect in relation thereto or otherwise as may appear to them to be just and equitable in all the circumstances.

The Commission may make orders as to the costs of the parties on applications under this sub-paragraph and as to the parties by whom such costs are to be paid, and may tax or settle the amount of the costs to be paid under any such order or direct in what manner they are to be taxed, and any such order may be enforced in like manner as an order of a referee as to costs made under the Second Schedule.

1ST SCH.
—cont.

(6) In relation to a value payment made as mentioned in subparagraph (1) of this paragraph section forty-six (which relates to the mode of disposal of a value payment or of a share of such a payment in certain circumstances) shall have effect subject to the following modifications, that is to say—

- (a) for the references in subsections (1) and (4) to the occurrence of war damage there shall be substituted references to the material date; and
- (b) in subsection (2) the reference to a testamentary disposition executed before the occurrence of the war damage shall include a reference to such a disposition executed before the material date.

9. *Power to modify notice under s. 7 (2) requiring Commission to be informed of proposed works.*

Where a notice has been published by the Commission under subsection (2) of section seven imposing an obligation to inform the Commission of proposals to execute works, the Commission may by a subsequent notice so published release that obligation either as regards the whole or as regards a part of the area or class of hereditaments or class of works, as the case may be, specified in the earlier notice.

10. *Amendment of s. 9 (3) as to valuation of a proprietary interest free from certain charges.*

In subsection (3) of section nine (which provides for the valuation of a proprietary interest as if free from any charge or lien for securing money or money's worth), for the words "charge or lien for securing money or money's worth" there shall be substituted the words "mortgage or floating charge or to any rentcharge."

11. *Amendment of s. 9 (4).*

(1) In subsection (4) of section nine (which provides for the disposal of so much of a value payment as is attributable to a proprietary interest which was subject to a mortgage, and is expressed to have effect where the mortgage is subsisting at the time when the payment is discharged and in the absence of agreement between the mortgagee and the person entitled subject to the mortgage) the words from "and the mortgage is subsisting" to "subject to the mortgage" shall be omitted, and in lieu thereof the following proviso shall be inserted at the end of the said subsection, that is to say—

" Provided that—

- (a) if at the time when the payment is made the debt secured by a mortgage (other than any part thereof representing costs for which the mortgagee would not be entitled to credit) has been paid in full, the payment or share shall be disposed of as if the proprietary interest had not been subject to that mortgage;
- (b) if the proprietary interest was subject to two or more successive mortgages, this subsection shall have effect with the substitution for references to the mortgagee of references to the first mortgagee, or, if the preceding paragraph has effect in relation to his mortgage, to the second mortgagee, and so on; and

- (c) in any case this subsection shall have effect, as regards any mortgage, subject to any agreement between the mortgagee and the person who apart from that mortgage would have been entitled to receive the payment or share."

(2) In subsection (4) of section nine, for the words "exercisable by the mortgagee" there shall be substituted the words "exercised by the mortgagee on the date by reference to which the disposal of the value payment is to be regulated".

12. *Person to whom notice of requirements as to wages and conditions of employment is to be given.*

In subsection (2) of section thirteen, for the words "to the claimant for the payment in question" there shall be substituted the words "to the owner of every proprietary interest in the land on which the works are executed subsisting at the date when the notice is given".

13. *Reduction of contribution where Schedule A assessment reduced, otherwise than through war damage, by reason of destruction or demolition of buildings.*

At the end of subsection (2) of section thirty (which provides that where by reason of alteration in the condition of a unit of land a Schedule A assessment is replaced by another such assessment, the lower of the two assessments is to be disregarded) there shall be inserted the following proviso:—

"Provided that where the alteration is caused, otherwise than by war damage, by the destruction or demolition of buildings or works, or parts thereof, comprised in the unit of land, then, as respects an instalment of contribution for any year (being a year subsequent to the year nineteen hundred and forty-one) the relevant date in which falls after the new assessment is first in force, the assessment replaced, and not the new assessment, shall be disregarded for the purposes of this Part of this Act notwithstanding that the amount of the new assessment is less than that of the assessment replaced."

14. *Suspension or remission of instalments in respect of properties affected under Housing Acts by clearance or compulsory purchase, or demolition, orders.*

(1) Where as respects the year nineteen hundred and forty-two or any subsequent year the Commissioners of Inland Revenue are satisfied that the following conditions are fulfilled in the case of any contributory property which consists of a house or building and the site thereof, that is to say,—

- (a) that at the beginning of that year the house or building was subject to a clearance order made under the Housing Act, 1936, which had been confirmed by the Minister of Health, to a compulsory purchase order made under that Act relating to land comprised in a clearance area, or made in accordance with subsection (3) of section thirty-six of that Act, which had been so confirmed, or to a demolition order made under that Act which had become operative; and

- (b) that the house or building has not been occupied in whole or in part at any time during that year,

the Commissioners of Inland Revenue shall take no steps to recover any instalment of contribution falling due in respect of the property

26 Geo. 5 and
1 Edw. 8. c. 51.

1ST SCH.
—cont.

for that year unless and until they are satisfied that the condition specified in head (b) of this sub-paragraph has ceased to be fulfilled or that the order has been quashed.

(2) Any reference in this paragraph to a house or building includes a reference to any yard, garden, outhouses and appurtenances belonging thereto or usually enjoyed therewith; and the reference in head (a) of the last preceding sub-paragraph to a house or building subject to a compulsory purchase order confirmed by the Minister of Health includes a reference to a house or building belonging to a local authority to which by virtue of section twenty-eight of the Housing Act, 1936, the provisions of that Act apply as if it had been purchased by the authority as being land comprised in a clearance area.

(3) In the application of this paragraph to Scotland, for the references to the Housing Act, 1936, and to orders confirmed by the Minister of Health there shall be respectively substituted references to the Housing (Scotland) Act, 1930, and to orders confirmed by the Secretary of State:

20 & 21 Geo. 5.
c. 40.

Provided that for references to section twenty-eight and to subsection (3) of section thirty-six of the first mentioned Act there shall be respectively substituted references to section sixty-one and subsection (2) of section seventeen of the Housing (Scotland) Act, 1935.

25 & 26 Geo. 5.
c. 41.

(4) In the application of this paragraph to Northern Ireland for the references to the Housing Act, 1936, and the Minister of Health there shall be substituted respectively references to Part II of the Planning and Housing Act (Northern Ireland), 1931, and to the Ministry of Home Affairs for Northern Ireland, and the references to a compulsory purchase order shall not apply.

15. *Land used for aerodromes, &c., to be liable to lower rate of contribution.*

(1) The proviso to subsection (3) of section twenty (which provides that in the case of the properties specified therein the amount of each instalment of contribution shall be sixpence in every pound of the contributory value) shall apply to a contributory property which consisted throughout the risk period of land used for the purposes of an aerodrome, flying school or landing ground (not being a property consisting solely of buildings or works and the site thereof) and to a property which consisted during part of that period of such land as aforesaid and during the remainder of the period of such land as is described in paragraphs (a), (b) and (c) of the said subsection (3):

Provided that where the property comprised buildings or works, the buildings or works, and the site thereof, on the one hand, and the remainder on the other hand, shall be treated as separate contributory properties and the contributory value of each ascertained by apportioning what would have been the contributory value of the whole property.

(2) Any apportionment under this paragraph shall be made by the Commissioners of Inland Revenue, but any person who is aggrieved by any such apportionment may appeal to the Special Commissioners.

(3) Section twenty-one (which provides for disregarding temporary diversion of land from its normal use) shall, with the necessary modifications, apply for the purposes of this paragraph.

16. *Amendment of definition of unfitness and fitness of properties in relation to recovery of instalments of contribution.*

In subsection (4) of section thirty-three, for the definitions of "unfit" and "fit" there shall be substituted the following definitions:—

"In this subsection the expression 'unfit' means unfit for the purpose for which the property was used or adapted for use immediately before the occurrence of the war damage in question, and unfit also for any other purpose substantial in relation to that purpose; and the expression 'fit' means fit for any such purpose.

In considering whether a property is unfit or fit for any purpose regard shall be had to all relevant circumstances, and in particular to the class of occupier likely to use similar properties which are not unfit for that purpose, and to the standard of accommodation available at the material time."

17. *Exclusion of liabilities under the principal Act from operation of provisions for discharge of outgoings.*

(1) A provision in an agreement creating a short tenancy or granting a licence by which the tenant or licensee is required to discharge outgoings, and any other provision subject to which such a tenancy or a licence is held and which apart from this sub-paragraph might have imposed on the tenant or licensee any liability in respect of any instalment of contribution or of any indemnity in respect of any instalment of contribution or of any premium payable under a policy issued under either of the schemes operated under Part II of the principal Act, shall be of no effect so far as regards any such liability, whether the provision was entered into or imposed before or after the passing of the principal Act or of this Act.

(2) A provision contained in any will, settlement or other instrument (including an enactment), whether executed or coming into operation before or after the passing of the principal Act or of this Act, to the effect that outgoings (by whatever word described) are to be discharged out of income, or by a person entitled to income or to a right of possession or residence in the capacity of a beneficiary under a trust, shall not have effect in relation to any such instalment indemnity or premium as aforesaid, except in a case in which an intention that it should have effect in relation thereto, or in relation to a class of outgoings within which the contribution indemnity or premium falls, appears from terms of the instrument other than the generality of the reference therein to outgoings.

(3) In the application of this paragraph to Scotland, for any reference to a short tenancy there shall be substituted a reference to a tenancy under a lease the stipulated duration of which is not more than twenty-one years or, in the case of minerals, not more than thirty-one years, from the date of the entry.

18. *Amendment of provision rendering rights relating to contributions enforceable notwithstanding transmission of interest, to provide for transmission between 1st January and 1st July.*

In section thirty-five, after the words "a right" there shall be inserted the words "(whether present or future)", and after the words "since that date" there shall be inserted the words "and whether before, on or after the first day of July next following".

1ST SCH.
—cont.4 & 5 Geo. 6.
c. 30.19. *Collection of contribution by resort to rent received.*

The power of the Commissioners of Inland Revenue to make regulations for the assessment and collection of contributions applying with modifications enactments relating to the assessment and collection of income tax shall include power to make such regulations for the collection of the first or any subsequent instalment applying with modifications, and in relation to any class of property, the provisions of Part II of the First Schedule to the Finance Act, 1941 (which provides for the collection of tax due from a landlord by requiring the payment over of rent paid in respect of the property on which the tax is due) and the provisions of the enactments relating to income tax ancillary thereto.

20. *Insertion in s. 39 of omitted references to ecclesiastical purposes.*

In section thirty-nine, in subsections (4) and (6), for the words "charitable purposes" in each place where those words occur there shall be substituted the words "charitable or ecclesiastical purposes".

21. *Application of principal Act to elementary schools transferred to local education authority.*11 & 12 Geo. 5.
c. 51.
33 & 34 Vict.
c. 75.
2 Edw. 7. c. 42.

(1) Where an elementary school has been transferred to the local education authority for elementary education under section thirty-eight of the Education Act, 1921, or under section twenty-three of the Elementary Education Act, 1870, and section twenty-five of and the Second Schedule to the Education Act, 1902, or the authority has an interest in the premises of such a school under a lease granted whether by virtue of a scheme made under the Charitable Trusts Acts, 1853 to 1925, or otherwise, the Board of Education may, with the consent of the authority and of the trustees of the school, by order made as respects the whole or any part of the premises of the school direct that the provisions of the principal Act relating to the recovery and ultimate incidence of instalments of contributions, and to payments in respect of war damage under Part I thereof, shall apply as if the premises of the school, or the part thereof to which the order relates, as the case may be, were vested in the authority for all the interest therein belonging to the trustees or otherwise held in trust for the school.

(2) In relation to a case where the transfer or lease affects part only of the premises of the school, sub-paragraph (1) of this paragraph shall apply as if the references to the premises of the school were references to that part of the premises.

(3) An order made under sub-paragraph (1) of this paragraph may, with the consent of the authority and of the trustees, be revoked by an order of the Board of Education either as respects the whole or as respects any part of the land affected by the order revoked; and an order under the said sub-paragraph (1) shall cease to have effect on the termination of the rights of the authority under the transfer or the interest of the authority under the lease:

Provided that the revocation of the order, whether in whole or in part, or its ceasing to have effect, shall not affect any liability in respect of an instalment of contribution for a year the relevant date in which fell before the time when the order was revoked or ceased to have effect, or any right to payment in respect of war damage occurring before that time.

(4) An order made under sub-paragraph (1) of this paragraph shall apply as well in relation to an instalment of contribution for a year the relevant date in which fell between the transfer, or the commencement of the interest of the authority, as the case may be, and the date of the making of the order but not discharged at that date as in relation to an instalment of contribution for a year the relevant date in which falls after that date.

(5) An order made under this paragraph shall, unless the contrary is shown, be presumed to have been made with the consent of the authority and trustees concerned.

(6) In this paragraph the expression "premises," in relation to a school, has the same meaning as in the Fourth Schedule to the Education Act, 1921; and where successive interests are granted to an authority without any interval between the termination of one and the commencement of the next, the successive interests shall be treated for the purposes of this paragraph as one interest commencing at the commencement of the earliest interest.

(7) In the application of this paragraph to Northern Ireland—

- (a) for the references to an elementary school, to transfer under the enactments mentioned in sub-paragraph (1) of this paragraph, to the local education authority for elementary education, and to the Board of Education there shall respectively be substituted references to a public elementary school, to transfer under section fourteen of, and the Second Schedule to, the Education Act (Northern Ireland), 1923, to the education authority within the meaning of that Act, and to the Ministry of Education for Northern Ireland; and
- (b) the expression "premises," in relation to a school, includes the teacher's residence (if any) and any land or buildings held in connection with the school.

22. *Land belonging to National Trust.*

(1) The provisions of sub-paragraphs (2) to (5) of this paragraph shall have effect where the following conditions are satisfied as respects the whole or part of a contributory property at the relevant date in any year or as respects the whole or part of a hereditament immediately before the occurrence of war damage to the hereditament, that is to say, that the fee simple absolute in possession therein belongs either—

- (a) to the National Trust for Places of Historic Interest or Natural Beauty incorporated by the National Trust Act, 1907; or
- (b) to the National Trust for Scotland for Places of Historic Interest or Natural Beauty incorporated under the National Trust for Scotland Order Confirmation Act, 1935;

and is held inalienably by them, and that no tenancy which is a proprietary interest is subsisting therein.

(2) Where the said conditions are satisfied as respects the whole of a contributory property, no instalment of contribution shall be payable in respect of the property for the year in which the relevant date falls.

(3) Where the said conditions are satisfied as respects part of a contributory property, the instalment of contribution in respect of the property for the year in which the relevant date falls shall be apportioned between that part and the rest of the property in such

7 Edw. 7.
c. cxxxvi.

26 Geo. 5 and
1 Edw. 8. c. ii.

1ST SCH.
—cont.

proportions as the Commissioners of Inland Revenue may determine, and—

- (a) the provisions of the preceding sub-paragraph shall have effect as if that part were a separate contributory property ; and
- (b) the provisions of the principal Act relating to the recovery and the ultimate incidence of instalments of contributions shall have effect as if the rest of the property were a separate contributory property and as if the part of the instalment apportioned thereto were an instalment in respect thereof.

Any person who is aggrieved by an apportionment made by the Commissioners of Inland Revenue under this sub-paragraph may appeal to the Special Commissioners.

(4) Where the said conditions are satisfied as respects the whole of a hereditament, no payment shall be made under the principal Act in respect of the damage thereto.

(5) Where the said conditions are satisfied as respects part of a hereditament, any value payment in respect of the damage shall be reduced by such amount as the Commission may determine to be attributable to the damage to that part, and the remainder of the value payment shall be paid as if it were a value payment in respect of damage to a separate hereditament consisting of the remainder of the hereditament.

(6) Section forty-three shall be omitted.

23. *Repeal of s. 44 (1) (d).*

Paragraph (d) of subsection (1) of section forty-four shall be omitted.

24. *Verbal amendment of s. 46 (2).*

In the reference in subsection (2) of section forty-six to a testamentary disposition made before occurrence of war damage, the word "executed" shall be substituted for the word "made."

25. *Share of value payment to be attributed to buildings or works belonging to person not having a proprietary interest.*

Where a value payment is to be made in respect of war damage to a hereditament and at the date by reference to which the disposal of the payment is to be regulated there is on the hereditament a building or work, not being an article to which the provisions of subsection (4) of section forty-six apply, which a person had a right to remove so as to be entitled on removing it to it or to the materials of it, or which a person not having a proprietary interest in the hereditament had placed thereon and could have been required to remove, and either—

- (a) there was subsisting in the building or work a proprietary interest owned otherwise than by that person, or owned by him otherwise than in a capacity in which he had a right to remove it as aforesaid (being an interest against which his right to remove it, or the right to require him to remove it, was exercisable) ; or

- (b) the building or work was included in a mortgage of a proprietary interest in the hereditament, and his right to remove it, or the right to require him to remove it, was exercisable against the mortgagee ;

the provisions of the said subsection (4) shall have effect in relation to the building or work with the substitution of references thereto and to this subsection for references to the article and to that subsection, and as if references to a right to remove included references to an obligation to remove.

26. Power of Commissioners of Crown Lands to apply capital for dealing with war damage.

(1) The Treasury may, by any general or special directions given by them, authorise the Commissioners of Crown Lands to charge as a principal sum to the account of the capital of the land revenues of the Crown the costs, charges and expenses incurred by them in the execution, on and for the benefit of lands under their management, of works for any of the following purposes, or in any operation incident to or necessary or proper for carrying into effect any of those purposes, or for securing the full benefit of any of those works or purposes, that is to say :—

- (a) the repair of war damage ;
- (b) the re-construction of buildings or works which have sustained war damage ;
- (c) the construction of buildings or works in substitution for buildings or works which have sustained war damage, whether on the same site or on a different site.

(2) The Treasury may, by any general or special directions given by them, authorise the said Commissioners to enter into and carry into effect arrangements for the payment by them of, or for the making by them of advances in respect of, any costs, charges or expenses incurred as aforesaid by other persons, and to charge as aforesaid payments and advances made pursuant to the arrangements.

(3) The Treasury may, if they think fit, direct that any sum paid out of capital in accordance with any such authorisation as aforesaid shall be repaid out of the income of the land revenues of the Crown within such time and by such number of instalments of such amounts respectively as may be specified in the directions, so however that, where the said Commissioners are entitled to a payment under the principal Act in respect of the war damage in question, this subparagraph shall have effect only as respects the excess (if any) of the sums so paid out of capital over the amount of that payment (excluding any part of it which represents interest).

27. Power to treat as war damage results of measures taken under proper authority to meet circumstances created by war damage.

(1) For the purposes of the provisions of the principal Act relating to payments in respect of war damage under Part I thereof, the Commission may, with the consent of the Treasury, treat as damage of the kind mentioned in paragraph (b) of subsection (1) of section eighty any physical change in land, whether or not being such as to cause depreciation in the value thereof, which is the direct result of measures

1ST SCH.
—cont.

2 & 3 Geo. 6.
c. 75.

taken under proper authority to meet circumstances created by damage occurring as mentioned in paragraph (a) of that subsection.

(2) No compensation shall be payable under subsection (4) of section three of the Compensation (Defence) Act, 1939, by reference to depreciation in so far as it is the direct result of any physical change in land treated by the Commission as war damage under this paragraph:

Provided that nothing in this sub-paragraph shall affect any payment made under the said subsection (4) before the passing of this Act.

28. *Disposal of unclaimed balances of mutual insurance funds.*

(1) The Board of Trade may by order provide that where the persons having the control of funds which fall to be distributed by virtue of subsection (2) of section eighty-seven (which provides for the distribution of funds constituted before the passing of the principal Act for the purpose of providing indemnification against war damage) have been unable to trace the persons entitled to any moneys forming part of such funds, the Board of Trade may, if satisfied that reasonable steps have been taken for the purpose of tracing the persons entitled, authorise the payment of the moneys in question into an account specified in the order; and any payment into such an account authorised by the Board of Trade shall be a good discharge for the amount of the payment.

(2) An order made under this paragraph shall provide for the making of payments out of the account, in accordance with the provisions of the order, to persons claiming to be entitled to moneys paid into the account.

29. *Provisions as to moveable property falling within definition of land.*

(1) For the purposes of the operation of the provisions of the principal Act relating to payments in respect of war damage under Part I thereof as regards any chattel personal that falls within the definition of "land" in section ninety-five, the property in the chattel shall be treated as a proprietary interest and the sole proprietary interest therein.

(2) References in sections twenty-three, twenty-seven and twenty-nine to a proprietary interest subsisting in the whole of a contributory property shall be construed as references to a proprietary interest subsisting in so much of the property as is capable of being the subject of a proprietary interest, and references in the Fourth Schedule to a tenancy of a contributory property shall be construed as references to a tenancy of so much of the property as is capable of being subject to a tenancy.

(3) In the application of this paragraph to Scotland, the expression "chattel personal" shall mean "corporeal moveable".

30. *Amendment of definitions relating to tenancies.*

(1) At the end of the definition in subsection (1) of section ninety-five of a "short tenancy" the following paragraphs shall be inserted—

"(c) a tenancy at will;

(d) a tenancy granted for a term limited to expire, or subject to a right of the landlord to determine the tenancy, on, or

at a time or within a period expiring not later than seven years after, any such occasion as the following, that is to say, the termination of any war in which His Majesty may be engaged or of hostilities in any such war or of the emergency mentioned in the Emergency Powers (Defence) Act, 1939, or any other Act of the present Parliament, the occurrence of any event likely to occur on or in connection with such termination, or any similar occasion in whatsoever words described."

1ST SCH.
—cont.

2 & 3 Geo. 6.
c. 62.

(2) In subsection (3) and in subsection (4) of section ninety-five (which make provision as to the period which certain tenancies are to be treated as having to run, and which are expressed to have effect for the purposes of the principal Act), for the words "of this Act" there shall be substituted the words "of the provisions of Part I of this Act relating to contributions and of the Fourth Schedule thereto."

31. *Amendment as to accounting for payments to Commission and their staff.*

In the First Schedule, in paragraph 8 (which relates to the remuneration of the members, officers and servants of the Commission), for the words "The Treasury may pay" there shall be substituted the words "There shall be paid".

32. *Proof of Commission's documents.*

Every document purporting to be an instrument made or issued by the Commission and to be signed by the secretary or any person authorised to act in that behalf shall be received in evidence, and shall, until the contrary is proved, be deemed to be an instrument made or issued by the Commission; and prima facie evidence of any such instrument may, in any legal proceedings (including arbitrations), be given by the production of a document purporting to be certified to be a true copy of the instrument by or on behalf of the secretary.

33. *Provision for preventing appeal to referees restricted to one only of two related values.*

The provision to be made by rules under paragraph 2 of the Second Schedule in relation to appeals and references to referees under section six or nine shall include provision for securing that, on an appeal or reference as to either of two amounts the difference between which it is material for any of the purposes of the principal Act to ascertain, the referee shall determine the other of those amounts also.

34. *Amendment as to referee's order as to costs.*

(1) In the Second Schedule, in paragraph 3 (which relates to a referee's order as to costs), for the words "and any such order as to costs shall have effect as if it were an order of the High Court, save that it shall not be enforced as such except by leave of that court, or of a judge thereof", there shall be substituted the words "and may tax or settle the amount of any costs to be paid under any such order or direct in what manner they are to be taxed, and any such

1ST SCH.
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order may be enforced as if it were an award on a submission within the meaning of the Arbitration Acts, 1889 to 1934 ”.

(2) For subsection (27) of section ninety-six (which section provides for the application of the principal Act to Scotland) the following subsection shall be substituted—

“ (27) Paragraph 3 of the Second Schedule shall have effect as if for the words from ‘ an award ’ to the end of the paragraph there were substituted the words ‘ a recorded decree arbitral ’ ”.

(3) At the end of section ninety-seven (which provides for the application of the principal Act to Northern Ireland) the following subsection shall be inserted—

“ (24) Paragraph 3 of the Second Schedule shall have effect as if for the words ‘ submission within the meaning of the Arbitration Acts, 1889 to 1934 ’ there were substituted the words ‘ reference under an arbitration agreement within the meaning of the Arbitration Act (Northern Ireland), 1937 ’ ”.

Section 2.

SECOND SCHEDULE.

AMENDMENTS AS TO ULTIMATE INCIDENCE OF CONTRIBUTIONS UNDER PART I OF THE PRINCIPAL ACT.

Mortgagors and Mortgagees.

1. Section twenty-five (which provides for the payment, by mortgagees to mortgagors under mortgages to which that section applies of interests in contributory properties to which that section applies, of indemnities depending on the ratio of the amount secured by the mortgage to the price of acquisition, or in certain cases the value, of the interest) shall have effect subject to the provisions of the next five following paragraphs.

2. In the application of section twenty-five and of this paragraph to a second or subsequent mortgage of an interest, references therein to the price of acquisition or value of the interest shall be construed as references to that price, or to the value of the interest free from any mortgage, reduced by the aggregate of the amounts secured by all prior mortgages of the interest, whether mortgages to which the said section twenty-five applies or not :

Provided that where the interest is not the only security for the amount secured by any of the prior mortgages, this paragraph shall have effect as if the amount secured by that mortgage were the sum which bears to that amount the same proportion as the price of acquisition or, as the case may be, the value of the interest bears to the aggregate of that price or value and of the value of all the other property which is a security for the amount secured by the said prior mortgage.

3. In subsection (3) (which relates to the indemnity to be given by a mortgagee who holds other security as well as a mortgage to which section twenty-five applies) for the words “ but is not the only property

subject to that mortgage " there shall be substituted the words " but is not the only security for the amount secured by that mortgage ", and for the words " then subject to that mortgage " there shall be substituted the words " which is then a security for the amount secured by that mortgage."

2ND SCH.
—cont.

4.—(1) Where—

- (a) the whole or parts of different storeys of a house or building are occupied by two or more persons in different apartments or tenements and the house or building comprises more than one contributory property, but each of the contributory properties is used or suitable for use for residential purposes and has a contributory value not exceeding thirty-five pounds ; or
- (b) land which is farmed as a single unit or consists only of land so farmed together with other land either normally farmed therewith or, if it consists of or comprises buildings, intended to form part of the unit, comprises more than one contributory property, but the aggregate of the contributory values does not exceed five hundred pounds,

the house or building or, as the case may be, the land shall be deemed for the purposes of section twenty-five to be a single contributory property to which that section applies.

(2) Head (a) of the preceding sub-paragraph shall not apply in Scotland or Northern Ireland, but section ninety-six shall have effect as if for subsection (14) thereof there were substituted the following subsection :—

" (14) Section twenty-five shall apply, in addition to the contributory properties specified in subsection (4) thereof, to any tenement comprising dwelling houses the contributory value of none of which exceeds thirty-five pounds, and any such tenement shall for the purposes of the said section twenty-five be deemed to be a single contributory property whether or not any of its component parts are separately assessed to Schedule A or separately entered in the valuation roll.

In relation to a dwelling house comprised in such a tenement as aforesaid and forming part only of a contributory property, the reference in this subsection to the contributory value of the dwelling house shall be construed—

- (a) where the dwelling house is separately entered in the valuation roll, as a reference to an amount which bears to the contributory value of the contributory property of which the dwelling house forms part the same proportion as the rateable value of the dwelling house bears to the aggregate of the rateable values of all the parts of the contributory property ;
- (b) in any other case, as a reference to an amount which bears to the contributory value of the contributory property the same proportion as the annual value of the dwelling house bears to the annual value of the contributory property."

2ND SCH.
—cont.

5. In considering whether a mortgage is a mortgage to which section twenty-five applies, paragraph (c) of subsection (1) of section forty-four (under which a contributory property of which part is requisitioned is to be treated as more than one contributory property for contribution purposes) shall be disregarded.

6. For the purposes of section twenty-five, a mortgage created in connection with the payment to the mortgagee under another mortgage of sums secured by that other mortgage shall be deemed to have been substituted for that other mortgage, as well where the payment was made before the creation of the first mentioned mortgage as where it was made at the same time as or after the creation thereof.

Landlords and Tenants.

7.—(1) Paragraph 2 of the Fourth Schedule (which entitles an indirect contributor to indemnity from his landlord against the whole or a part of his liability in respect of an instalment) shall have effect as if at the end thereof there were added the following proviso :—

“ Provided that the foregoing provisions of this paragraph shall have effect—

- (a) where the land by virtue of being tenant of which the said person is entitled to indemnity from his landlord comprises a part only of the contributory property, as if for the reference to the amount of the instalment there were substituted a reference to the fraction of the instalment attributable to the part of the property ; and
- (b) where the land by virtue of being tenant of which the said person is entitled to indemnity from his landlord comprises part only of land by virtue of being landlord of which the said person incurs the liability to indemnify his tenant, as if for the reference to his said liability there were substituted a reference to so much thereof as bears to the whole amount of his said liability the same proportion as the annual value of the first-mentioned land bears to the annual value of the last-mentioned land.”

(2) In head (c) of sub-paragraph (2) of paragraph 6 of the Fourth Schedule (which provides for determining the value of land which comprises the contributory property in question and also other land), after the words “ in question ” there shall be inserted the words “ or a part thereof.”

8. Paragraph 4 of the Fourth Schedule (which entitles an indirect contributor to indemnity from a tenant of his of part of the property against the whole or a part of his liability in respect of an instalment) shall have effect as if for the words “ against his said liability ” there were substituted the words “ against so much of his said liability as is attributable to that part of the property,” and as if at the end of the said paragraph there were inserted the following provision :—

“ For the purposes of this paragraph, so much of the liability of the said person shall be taken to be attributable to the said part of the property as bears to the whole amount of the liability the same proportion as the annual value of the said part of the property bears to the annual value of the land by virtue of his interest in which the said person incurs the liability.”

9.—(1) Paragraphs 1 to 4 of the Fourth Schedule shall not apply in relation to a tenancy of which the term has at the relevant date not yet commenced (in this paragraph referred to as a "reversionary tenancy"); but indemnities shall be payable by tenants under reversionary tenancies to their landlords in accordance with the following provisions of this paragraph.

(2) Where the interest in a contributory property or part thereof of a direct or indirect contributor in respect of the instalment of contribution for the property falling due in any year is at the relevant date in that year immediately subject to a reversionary tenancy, being a proprietary interest, the contributor shall be entitled to be indemnified by the tenant under the reversionary tenancy against his aggregate liability in respect of the instalment, reduced by the aggregate of the indemnities which he is entitled to receive in respect of the instalment from a landlord or from a tenant not being a tenant under a reversionary tenancy, up to an amount not exceeding the difference between—

- (a) the instalment less the proportion thereof appropriate to a tenancy of the land comprised in, and at the rent reserved by, the reversionary tenancy and having still to run at the relevant date a period equal to the period between the relevant date and the date on which the term of the reversionary tenancy is to end; and
- (b) the instalment less the proportion thereof appropriate to a tenancy of the land and at the rent aforesaid, and having still to run at the relevant date a period equal to the period between the relevant date and the date on which the term of the reversionary tenancy is to commence.

(3) (a) If the reversionary tenancy extends to a part only of the land subject to the interest of the contributor in the contributory property, the reference in sub-paragraph (2) of this paragraph to the aggregate liability of the contributor, reduced as mentioned in that sub-paragraph, shall be construed as a reference to the amount which bears to his aggregate liability, reduced as aforesaid, the same proportion as the annual value of the part of the land bears to the annual value of the land.

(b) If the reversionary tenancy extends to a part only of the contributory property, the references in heads (a) and (b) of sub-paragraph (2) of this paragraph to the instalment shall be construed as references to the fraction of the instalment attributable to that part of the property.

(c) If the rent reserved by the reversionary tenancy is not constant throughout the term, the references in sub-paragraph (2) of this paragraph to that rent shall be construed as references to a yearly rent equal to the aggregate of the rent reserved over the whole of the term divided by the number of years in the term.

(d) If the period between the relevant date and the date on which the term of the reversionary tenancy is to end is a hundred years or more, the proportion mentioned in head (a) of the said sub-paragraph (2) shall be taken to be nil.

2ND SCH.
—cont.

(4) The provisions of this Act and of the principal Act (including in particular references to an indirect contributor and the liability or net liability of an indirect contributor) shall have effect as if this paragraph were inserted after paragraph 4 of the Fourth Schedule.

(5) This paragraph shall have effect, in its application to Scotland, as if for the reference in sub-paragraph (2) thereof to a reversionary tenancy, being a proprietary interest, there were substituted a reference to a reversionary tenancy, being a tenancy under a lease the stipulated duration of which is more than twenty-one years or, in the case of minerals, more than thirty-one years, from the date of the entry.

10. In sub-paragraph (1) of paragraph 6 of the Fourth Schedule (which provides for ascertaining the amount of an indemnity payable under that Schedule in respect of a tenancy by reference, amongst other matters, to the proportion which the rent thereunder bears to the value of the land comprised therein) for the words "the proportion which the rent payable under the tenancy bears to the value of the land comprised therein" there shall be substituted the words "the proportion which the rent reserved for the period in which the relevant date falls, or, if that period is other than a year, the annual equivalent thereof, bears to the value of the land comprised in the tenancy."

11.—(1) At the end of sub-paragraph (1) of paragraph 6 of the Fourth Schedule there shall be added the following proviso:—

"Provided that where it is shown that the rent is greater by any amount than it would otherwise have been by reason of the landlord undertaking to bear any tenant's rates, or rendering or providing, or procuring to be rendered or provided, any services or goods, the proportion appropriate to the tenancy shall be calculated as if the rent were reduced by the said amount."

(2) For the avoidance of doubt it is hereby declared that the said sub-paragraph (1) has effect—

- (a) in relation to a tenancy under which no rent is reserved, as if a rent were reserved under the tenancy bearing to the value of the land comprised therein a proportion of less than one quarter;
- (b) in relation to a tenancy under which the rent reserved is not a money rent, as if the reference to the rent or the annual equivalent thereof were a reference to the money value of the rent or the annual equivalent thereof.

General provisions as to indemnities.

12. A right to indemnity conferred by Part I of, or the Fourth Schedule to, the principal Act shall not be enforceable until the discharge of the liability in respect of which the right arises:

Provided that on the discharge of part of the liability the said right shall be enforceable as respects a proportionate part of the amount of the indemnity.

13.—(1) Where by the making, on or after the first day of June, nineteen hundred and forty-two, of a payment in advance under section thirty-two an instalment of contribution is discharged in whole or in part, the provisions of Part I of the principal Act and the Fourth

Schedule thereto relating to the ultimate incidence of instalments of contribution shall, notwithstanding anything in the said section thirty-two, apply as if the instalment or the part thereof discharged, as the case may be, had been paid by the person by whom it would have been payable, and at the time it would have become due, if the payment in advance had not been made.

(2) Where by the making of a payment as aforesaid part only of an instalment of contribution is discharged, nothing in sub-paragraph (1) of this paragraph shall affect the liability of any person in respect of the remainder of the instalment.

THIRD SCHEDULE.

Section 2.

AMENDMENTS IN PART II (GOODS).

1. *Insurance of sea-going ships while laid up.*

(1) Notwithstanding anything in paragraph (b) or paragraph (c) of subsection (4) of section sixty, where a ship falling within the said paragraph (b) is laid up, and the Board of Trade are satisfied that the laying up thereof is not contrary to the national interest, the Board may, if they think fit, treat the ship and the machinery, tackle and furniture thereof as insurable in relation to a person, so long as the ship is laid up, under that one of the schemes which is appropriate to his case:

Provided that nothing in this sub-paragraph shall impose on any person any obligation to be insured.

(2) Where the Board of Trade have before the passing of this Act issued any policy of insurance against war damage in respect of a ship, or the machinery, tackle and furniture of a ship, which the Board are authorised by this paragraph to treat as insurable under either of the schemes, the Board may make payments in accordance with the terms of the policy, and any payments so made before the passing of this Act shall be deemed to have been properly made.

2. *Early payments under business scheme in cases of hardship.*

The power of the Board of Trade, in cases where they are satisfied that it is expedient to do so to avoid undue hardship, to make payments under the private chattels scheme at an earlier date than would otherwise be permissible shall extend to payments under the business scheme.

3. *Conditions to secure application of early payments for replacement of essential goods.*

(1) Where the whole or any part of a payment in respect of the destruction of or damage to any goods is made on an earlier date than would be allowable under subsection (1) of section sixty-one, and is so made by virtue of the Board of Trade being satisfied that the replacement or repair of the goods is expedient in the public interest, the Board may impose conditions requiring that the sum paid shall be applied in or towards the replacement or repair of the goods, or shall

3RD SCH.
—cont.

be so applied within such time as the Board may specify, and if any such condition is not complied with, the sum paid shall be recoverable as money had and received to the use of His Majesty.

(2) Nothing in this paragraph shall be taken to prejudice the power of the Board of Trade under subsection (3) of section sixty-one to impose conditions restricting the manner of application of a payment.

4. Exemption from compulsory insurance.

In determining for the purposes of paragraph (a) of the proviso to subsection (1) of section sixty-two (which provides for exemption from compulsory insurance where the value of all the goods for the time being insurable in relation to a person under the business scheme does not exceed the prescribed sum) the value of the goods insurable as aforesaid at any time, goods of a description for the time being exempted from compulsory insurance under paragraph (c) of that proviso shall be disregarded.

5. Payments for business chattels otherwise than under policies.

The Board of Trade may, in cases where regulations of the Treasury under section sixty-eight so provide, make payments in respect of war damage to goods insurable under the business scheme occurring after the coming into operation of that scheme notwithstanding that the goods were not insured thereunder.

6. Payments for damage to goods pertaining to places of worship.

(1) Where—

- (a) war damage has occurred to goods pertaining to a church, chapel or certified place of meeting for religious worship of any denomination, being goods in respect of which a policy has been issued under the business scheme; and
- (b) a representative body of that denomination, whether central or not, has made application to the Board of Trade, either as respects that policy or as respects any class of policies comprising that policy, that any payment thereunder in respect of the goods should, in lieu of being made to the person insured, be made to a body of persons specified in the application,

the Board of Trade may, if they think fit and after consultation with the person insured under the policy and any other persons appearing to the Board to be interested, give effect to the application.

(2) Regulations of the Treasury under section sixty-eight may provide for applying the provisions of sub-paragraph (1) of this paragraph to payments in respect of such goods as aforesaid made under that section otherwise than under policies.

7. Application of s. 88.

The provisions of section eighty-eight (which relate to amendments by Defence Regulations) shall apply to amendments of this Schedule as they apply to amendments of Part II of the principal Act.

FOURTH SCHEDULE.

Section 2.

CONSEQUENTIAL AMENDMENTS.

Provision of principal Act amended.	Amendment.	Provision of this Act on which amendment consequential.
Section three, subsection (6).	The word "immediately" shall be omitted.	First Schedule, paragraph 7 (1) (b).
Section six, subsection (2), paragraph (b).	For the words from "the owner of any proprietary interest" to "any other person" substitute "any person interested in the determination of the question whether the damage to the hereditament involves total loss, either as being, or having been, or claiming under a person who was, the owner of a proprietary interest therein or of a rentcharge charged thereon or a mortgagee of any such interest, or as being or claiming under a person".	First Schedule, paragraph 8.
Section seven, subsection (3), paragraph (c).	After "hereditament" insert "and of rentcharges (if any) to which it is subject."	First Schedule, paragraph 5.
Section nine, subsection (3).	After "other than its being subject to any charge or lien for securing money or money's worth" insert "or being affected by any restriction imposed on the hereditament by or under an enactment passed after the passing of this Act or by any liability of the hereditament to become subject to any restriction by virtue of any enactment".	First Schedule, paragraph 3 (1).
Section nine, subsection (4).	For "immediately before the occurrence of the war damage" substitute "at the date by reference to which the disposal of a value payment in respect of war damage thereto is under the preceding provisions of this section to be regulated".	First Schedule, paragraph 8.

4TH SCH.
—cont.

Provision of principal Act amended.	Amendment.	Provision of this Act on which amendment consequential.
Section nine, subsection (4).	For "the payment", where those words first occur, substitute "a value payment in respect thereof".	First Schedule, paragraph 11 (1).
Section nine, subsection (5).	After "proprietary interests in the hereditament" insert "and of rentcharges (if any) to which it is subject".	First Schedule, paragraph 5.
Section twelve, subsection (2).	For the words from "if the mortgage" to "share shall" substitute "if the mortgagee receives the payment or share he shall be liable to account as if it had been paid in full, but if not it shall".	First Schedule, paragraph 11 (1).
Section fourteen ...	In subsection (1), for "as provided by section three of this Act" substitute "on the basis of a valuation made by reference to prices current on the thirty-first day of March, nineteen hundred and thirty-nine", and in subsection (2) the words from "which" to "Act" shall be omitted, and for "as aforesaid" substitute "as provided by this Act".	First Schedule, paragraph 7 (1) (b).
Section twenty-five, subsection (7).	For "property subject to the mortgage" substitute "property which is a security for the amount secured on that interest".	Second Schedule, paragraph 3.
Section twenty-five, subsection (8), paragraph (c).	After "applies" insert "or is a security for the amount thereby secured", and at the end insert "or a security for that amount".	Second Schedule, paragraph 3.
Section twenty-seven, paragraph (i).	After "by him" insert "and had been paid when it is in fact paid by the mortgagee".	Second Schedule, paragraph 12.
Section thirty-three, subsection (2).	For "immediately before the occurrence of the war damage" substitute "at the date by reference to which the disposal of the value payment is to be regulated".	First Schedule, paragraph 8.

Provision of principal Act amended.	Amendment.	Provision of this Act on which amendment consequential.
Section thirty-three, subsection (2).	For " and which is subsisting when the value payment is discharged " substitute " and in right of which on the discharge of the value payment the mortgagee receives the payment or the share thereof of the owner of that interest, as the case may be ".	First Schedule, paragraph 11 (1).
Section thirty-three, subsection (2).	For " and the date of discharge of the value payment " substitute " discharged at the date of the discharge of the value payment, and that date ".	Second Schedule, paragraph 12.
Section thirty-eight, subsection (2).	The word "duly" shall be omitted, and at the end insert "as soon as the liability became enforceable ".	Second Schedule, paragraph 12.
Section thirty-nine, subsection (3).	At the end insert " and where the owner is relieved from the payment of part of an instalment, indemnities shall be payable by other persons as if he had paid the whole instalment at the time when he paid the part of which he was not relieved ".	Second Schedule, paragraph 12.
Section forty-four, subsection (1); and section forty-five, subsection (2).	For " the thirty-first day of August, nineteen hundred and forty-one " substitute " the termination of the risk period ".	Section one
Section forty-four, subsection (1).	After "relating to contributions" insert " (except the proviso to subsection (5) of section twenty-five) ".	Second Schedule, paragraph 5.
Section forty-four, subsection (3) (a).	For the words from " the depreciation in " to " its value in " substitute " that section shall have effect with the substitution for the reference in subsection (4) to the state in which the hereditament was immediately before the occurrence of the damage of a reference to ".	First Schedule, paragraph 7 (1) (b).

4TH SCH.
—cont.

Provision of principal Act amended.	Amendment.	Provision of this Act on which amendment consequential.
Section forty-five	In subsection (1), after "proprietary interest" insert "or rentcharge", after "underlease" insert "or a rentcharge being an equitable interest", and at the end insert "or the legal estate in respect of the rentcharge, as the case may be"; in subsection (2), for "to the legal term" substitute "thereto", and after "proprietary interest" insert "or rentcharge"; and in subsection (3) after "proprietary interest" insert "or rentcharge".	First Schedule, paragraph 5.
Section forty-six	In subsection (1), for "a proprietary" in both places where those words occur substitute "an", and the words "sections nine and fifteen of" shall be omitted.	First Schedule, paragraph 5.
Section sixty-one, subsection (2), paragraph (a).	The words "in the case of the private chattels scheme" shall be omitted.	Third Schedule, paragraph 2.
Section sixty-two, subsection (1), proviso (a).	After "in relation to him under the business scheme" insert "excluding goods of a description for the time being prescribed under paragraph (c) of this proviso".	Third Schedule, paragraph 4.
Section sixty-three	In subsection (2) the words "in relation to the goods" shall be omitted, and at the end of paragraph (b) of that subsection, insert "or, where the conditions require the replacement or repair of the goods, whether within a specified time or not, that if goods have been acquired or repaired as aforesaid they would be on any premises".	Third Schedule, paragraph 3.
Section sixty-eight	For paragraphs (a) and (b) substitute "war damage to goods which, when the damage occurred, were insurable in relation to him under either of the schemes, or would have been so insurable if the scheme in question had then been in force".	Third Schedule, paragraph 5.

Provision of principal Act amended.	Amendment.	Provision of this Act on which amendment consequential.
Section eighty, subsection (4).	The word "immediately", where it first occurs, shall be omitted.	First Schedule, paragraph 7 (1) (b).
Section ninety-five, subsection (1), definition of "risk period".	For "the thirty - first day of August, nineteen hundred and forty-one" substitute "such date (not being earlier than the thirty-first day of August, nineteen hundred and forty-two) as may be specified as the date for the termination of the risk period in an order made by the Treasury and approved by a resolution of the Commons House of Parliament."	Section one.
Section ninety-six	After subsection (9) insert— "(9A) For any reference to a rentcharge there shall be substituted a reference to a feuduty and to a ground annual, and any reference to the owner of a rentcharge shall be construed accordingly."	First Schedule, paragraph 6.
Section ninety-six	After subsection (10) insert— "(10A) Subsection (5) of section three shall have effect as if for the words 'any other incumbrance' there were inserted the words 'any ground annual or other incumbrance and any liability to pay feuduty'."	First Schedule paragraph 6.
Section ninety-six, subsection (17); and section ninety-seven, subsection (13).	The words "Section thirty-three and" and "respectively" shall be omitted, and for "Acts" substitute "Act".	First Schedule, paragraph 16.
Section ninety-seven.	At the end of subsection (9) insert "and the expressions 'Act' and 'enactment' include respectively an Act or enactment of the Parliament of Northern Ireland", and in subsection (8) the words "(including any Act of the Parliament of Northern Ireland)" shall be omitted.	Section 3 (2), and First Schedule, paragraph 3 (1).

4TH SCH.
—cont.

Provision of principal Act amended.	Amendment.	Provision of this Act on which amendment consequential.
Second Schedule, paragraph 1.	After "pounds" insert "or, in the case of a payment to the owner of a rentcharge the amount whereof does not exceed twenty-five pounds per annum".	First Schedule, paragraph 5.
Third Schedule, paragraph 2.	For the words from "such that the making good thereof" to "more than" substitute "such that the proper cost of the works required after the damage occurring on the subsequent occasion for reinstating the hereditament in the form in which it existed immediately before the first occasion would be likely, in the opinion of the Commission, to be more than".	First Schedule, paragraph 4 (1).
Third Schedule, paragraph 2.	At the end insert the following sub-paragraph— "(2) Sub-paragraph (2) of paragraph 4 of the First Schedule to the War Damage (Amendment) Act, 1942, shall have effect for the purposes of this paragraph as it has effect for the purposes of paragraph (a) of subsection (1) of section four of this Act, with the substitution for the reference therein to the damage of a reference to the damage occurring on the subsequent occasion."	First Schedule, paragraph 4 (2).
Third Schedule, paragraph (2) (d).	After "proprietary interests" insert "or any rentcharge", and the words "the subsistence of" shall be omitted.	First Schedule, paragraphs 5 and 11 (1).

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